

STATE OF NEW YORK

10185--A

IN ASSEMBLY

February 12, 2026

Introduced by M. of A. BLANKENBUSH -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to establishing a municipal exemption from commercial driver's license requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 509-qq to read as follows:

3 § 509-qq. Municipal exemption from commercial driver's license
4 requirements. 1. Notwithstanding any provision of law to the contrary, a
5 commercial driver's license shall not be required for the operation of a
6 motor vehicle owned or leased by a city, town, village, or county when
7 such vehicle is operated by a municipal employee solely for intrastate
8 governmental purposes.

9 2. For the purposes of this section, the following municipal oper-
10 ations shall be covered:

11 (a) snow and ice control;

12 (b) highway, road, bridge, or right-of-way maintenance;

13 (c) water, sewer, or public utility maintenance;

14 (d) emergency or disaster response; and

15 (e) such other substantially similar governmental functions as
16 approved by the commissioner.

17 3. Municipal employees operating under the exemption authorized by
18 this section shall be required to successfully complete a motor vehicle
19 skills and safety examination administered or approved by the depart-
20 ment, appropriate to the class and type of vehicle operated.

21 4. Municipalities utilizing the exemption authorized by this section
22 shall establish and maintain internal driver training and certification
23 programs, including:

24 (a) written training standards;

25 (b) behind-the-wheel instruction;

26 (c) periodic refresher training; and

27 (d) certification by a designated municipal supervisor.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 5. The commissioner may promulgate regulations establishing minimum
2 safety and testing standards for municipal training programs under this
3 section, provided such standards shall not require possession of a
4 commercial driver's license.

5 6. Nothing in this section shall be construed to permit the operation
6 of a motor vehicle in violation of any other applicable traffic or safe-
7 ty law.

8 § 2. This act shall take effect immediately.